

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.5399 of 2023.

In the matter of:

An application under section
115(1) of the Code of Civil
Procedure.

And

1(a) Dhonee Bala Dash and others

...Petitioners

-Versus-

Gayetri Deb Roy and others

...opposite parties

Mr. Sujorit Bhattacharjee, Advocates

...For the petitioners

Mr. Md. Sumon Ali, Advocate

...For the opposite party No.1

Heard & Judgment on 01.09.2024.

This rule was issued calling upon the opposite party No.1 to show cause as to why the judgment and decree dated 26.09.2023 passed by the learned Joint District Judge, 2nd Court, Habiganj in Miscellaneous Appeal No.22 of 2017 allowing the appeal in part and thereby reversing the judgment and order dated 23.05.2017 passed by the learned Senior Assistant Judge, Baniachong, Habiganj in Title Suit No.36 of 2013 allowing the application for temporary injunction filed under Order XXXIX Rule 1 of the Code of Civil Procedure in should not be set aside

and/or pass such other order or orders as to this Court may seem fit and proper.

Facts in short are that the petitioners as plaintiffs instituted above suit for a decree of perpetual injunction against defendant No.1 who is the widow of deceased Hira Lal Dash restraining her from transferring the property described in schedule Nos.1 and 2 in the plaint till disposal of above suit.

Hira Lal Dash and his 06 (six) brothers jointly owned held and possessed the property described in schedule No.1. As far as the property of second schedule is concerned above property was purchased by a registered kobla deed by above Hira Lal alone and he was living in that house along with his wife defendant NO.1. Above Hira Lal has died on 07.11.2010 without any child leaving his wife defendant No.1 as heir. The property of schedule No.1 is an ejmali paternal dwelling house of the plaintiffs which has not been partitioned by meets and bounds. As such if the defendant transfers any share from above land then it will be difficult for the plaintiffs to reside in the above house. As far as the property of schedule No.2 is concerned although the title deed stands in the name of Hira Lal alone above property was purchased with the

money of the joint fund of Hira Lal and his brothers.

Defendant No.1 entered appearance and contested the same by filing a written statement wherein she stated that the property of schedule NO.2 was the self acquired property of Hira Lal and after his demise the defendant No.1 has inherited the property of Hira Lal in schedules No.1 and 2.

In above suit the plaintiff filed a petition under Order XXXIX Rule 1 of the Code of Civil Procedure for an order of injunction against the defendant so that she cannot transfer any property from above schedules of the plaints.

The learned Senior Assistant Judge allowed above petition and restrained the defendant from transferring any property out of above two schedules of the plaint till disposal of the suit.

Being aggrieved by and dissatisfied with above order of the trial court the defendant preferred Miscellaneous Appeal No.22 of 2017 to the District Judge, Habigonj which was heard by the learned Joint District Judge, 2nd Court who allowed above petition in part and set aside the order of temporary injunction of the property of schedule No.2 but the affirmed the temporary injunction against the ejmali property for schedule No.1.

Being aggrieved by and dissatisfied with above judgment and order of the court of appeal below the respondent as petitioner moved to this court and obtained this rule.

Mr. Sujit Bhattacharjee learned Advocate for the petitioner submits that the right to transfer of the property of her deceased husband for legal necessity is an inalienable right of a Hindu widow and that right cannot be restrained by an order of injunction. Admittedly defendant No.1 did not sale any property as such the instant suit is a premature one and barred by the law inheritance of Hindu widow and the plaint of this case was liable to be rejected under Order 7 Rule 11 of the Code of Civil Procedure. But the learned Judges of the courts below failed to appreciate above facts and circumstances of the case and relevant law and most illegally passed an order of injunction which is not tenable in law.

Mr. Md. Sumon Ali learned Advocate for the opposite party submits that the property of schedule No.2 was purchased by Hira Lal with the money of the joint fund of the joint family comprising Hira Lal and his six brothers. The learned Judge of the court of appeal below rightly affirmed the order of injunction with regard to property of schedule No.1 holding that the same was ejmali property of Hira Lal and his

brothers. But the learned Judge failed to appreciate that the property of schedule NO.2 was also a joint property although the sale deed stands in the name of Hira Lal alone.

I have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

It is admitted that Hira Lal was a co-sharer of the property described in schedule No.1 and the registered sale deed of property schedule No.2 stands solely in the name of Hira Lal who has died on 07.11.2010 leaving his wife defendant No.1 as the only heir and plaintiffs petitioners are revisioner heirs of above Hira Lal.

A Hindu widow has an inalienable right to inherit the property of her husband in limited interest which includes the right to transfer the same for legal necessity. Above right to transfer for legal necessity is provided to a Hindu widow by the customary Hindu law which cannot be denied by a court of law. Admittedly defendant is the widow and only heir of deceased Hira Lal for the disputed property and plaintiffs are his revisioner heirs. The revisioner heirs become entitled to own and possess the property only after the demise of the limited interest holder. During the life time of the limited interest holder or Hindu widow the

revisioner do not have any right to claim title or possession of the above property. If a property is transferred by the holder of limited interest or Hindu widow the revisioners can challenge the legality of the transfer on the ground of lack of legal necessity only after the demise of the Hindu widow.

It is admitted that the property of schedule No.2 stands in the name of Hira Lal alone. It has been claimed by the petitioners that above property was purchased with the fund of joint family but in this suit for a decree for permanent injunction there is no scope to determine above claim of the petitioners.

The learned Joint District Judge has failed to appreciate above factual and legal aspect of the suit properly and most illegally passed an order of injunction against the opposite party restraining her from the transferring the property of schedule No.1 which is not tenable in law.

The court finds merit in this Civil Revision and the rule issued in this connection deserves to be made absolute.

In the result, the rule is made absolute.

The judgment and order dated 26.09.2023 passed by the learned Joint District Judge, 2nd Court,

Habiganj in Miscellaneous Appeal No.22 of 2017 allowing the appeal in part and thereby reversing in part the judgment and order dated 23.05.2017 passed by the learned Senior Assistant Judge, Baniachong, Habiganj in Title Suit No.36 of 2013 is set aside. The petition filed by the plaintiffs under Order 39 Rule 1 of the Code of Civil Procedure for an order of temporary injunction is rejected on contest without any cost.

The ad-interim order passed at the time of issuance of the rule is hereby vacated.

Let the copy of this judgment be transmitted down at once.

Md. Kamrul Islam
A.B.O